

Jitendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 July 2022 · Writ-C No. 19036 of 2022 · WRIT - C No. - 19036 of 2022 · **Writ disposed; liberty to file a Clause 6.8 objection, with coercive recovery stayed for eight weeks or until disposal of the objection, whichever is earlier.**

HEADNOTE

A writ seeking to quash a distribution licensee's recovery notice was disposed of without any opinion on merits after the licensee offered a time-bound decision of an objection. The consumer was given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, the assessing officer must decide it in accordance with law after a reasonable opportunity of hearing within the next four weeks. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Jitendra Singh petitioned the Allahabad High Court to quash a recovery notice dated 27 July 2021 issued by the distribution licensee (respondent no. 3) and to restrain recovery of any amount from him. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8 objection to recovery demand

HOLDING

A writ challenging a recovery notice is disposed of without opinion on merits where the licensee offers a time-bound decision of an objection: the consumer may file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, which the assessing officer shall decide in accordance with law after a reasonable opportunity of hearing within the next four weeks, and no coercive action shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

assessment-6.8-alternate-remedy The writ against the recovery notice was disposed of by relegating the consumer to a Para 6.8 objection, to be decided in accordance with law, without any determination of the demand. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed that a Para 6.8 objection, if filed within four weeks, be decided after hearing within a further four weeks, and stayed coercive recovery for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 27.07.2021 AND THE UNDERLYING DEMAND

The Court expressly declined to express any opinion on the merits. ¶ 1